

DEPARTMENT OF VETERANS AFFAIRS

Justification for Single Source Awards IAW [FAR 12.102\(a\)](#) For Over Micro-Purchase Threshold but Not Exceeding the Simplified Acquisition Threshold

Acquisition Plan Action ID: 36C248-26-AP-3031

1. **Contracting Activity:** Department of Veterans Affairs, VISN 8, 675 Orlando VA Medical Center, Lake Nona, Lake Baldwin, Viera, Pharmacy Department, Transaction: 675-26-3-2555-0422.
2. **Brief Description of Supplies/ Services required and the intended use/Estimated Amount:** Pharmacy requires a full-service maintenance and repair contract with BD, the original equipment manufacturer, because Orlando HTM's in-house technicians are not trained or certified to maintain or repair the BD Alaris Infusion Pump software. To ensure uninterrupted patient care and maintain compliance with manufacturer specifications, Pharmacy must rely on BD to provide all preventive and corrective maintenance. The proposed agreement includes comprehensive remote and onsite service, as well as 24/7/365 technical support for software troubleshooting. The cost for this full-service coverage is \$33,295.74 for the base year and \$33,295.74 for each option year. If all five years are exercised, the total contract value will be \$166,478.70.
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4. **Unique characteristics that limit availability to only one source, with the reason no other supplies or services can be used:** Only the original equipment manufacturer, BD, possesses the proprietary technical data, diagnostic tools, software access, and certified expertise required to perform full maintenance, troubleshooting, and software updates for the BD Alaris Infusion Pump software. No third-party service provider or in-house HTM personnel have the necessary OEM authorization, training, or access to BD's restricted software environment. Accordingly, BD is the only responsible source capable of delivering the full scope of required services, including remote and onsite support, continuous 24/7/365 technical assistance, and all essential software updates throughout the entirety of the contract period.
5. **Description of market research conducted and results or statement why it was not conducted:** Market research was conducted to determine whether any sources other than the original equipment manufacturer (OEM), BD, could provide the required full-service maintenance and repair support for the surgical arthroscopes. During this market research, it was confirmed that these devices rely on proprietary components, OEM-specific technical data, and manufacturer-controlled diagnostic software. BD is the only entity with authorized access to these resources.

No third-party vendors possess the required OEM certification, technical capability, or access rights to perform maintenance or repairs on this equipment. Additionally, a letter was received from BD, the OEM, which states that "CareFusion Solutions, LLC/BD has not authorized any other company to provide Alaris Support Program on the Alaris™ System users. The software is proprietary technology and not provided to 3rd parties for the purpose of providing software maintenance.

- 6. Contracting Officer's Certification:** *Purchase is approved in accordance with FAR 12.102(a). I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.*

Stephen Mancuso
Contracting Officer, NCO-8